

24STLC08416 24STLC08416

County: los-angeles

Division: Civil Law and Motion

Department: 26

Hearing date: 2026-06-24

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Case Number: 24STLC08416 Hearing Date: June 24, 2026 Dept: 26

TENTATIVE

RULING:

Plaintiff Creditor Adjustment Bureau, Inc.'s Motion to Deem

Requests for Admission Admitted and Request for Sanctions is denied as to the

requests, and granted as to the sanctions in the amount of \$673.75. The

sanctions are to be paid by Defendant Mammoital, Inc

#2 dba Mammoital adba Carusos Pizza adba Two Guys From Italy adba Caruso's

Italian Kitchen adba Rok N Sushi to Plaintiff's counsel within 20 days.

Analysis:

Plaintiff Creditor Adjustment Bureau, Inc. ("Plaintiff")

served Requests for Admissions, Set One, on Defendant Mammoital,

Inc #2 dba Mammoital adba Carusos Pizza adba Two Guys From Italy adba Caruso's

Italian Kitchen adba Rok N Sushi ("Defendant Mammoital") on March 27,

2026. (Motion, Brown Decl., Exh. 1.) As

of the filing of the instant Motion to Deem Requests of Admission Admitted, on May 1, 2026, Defendant Mammoital had not served responses to the discovery. (Id. at ¶¶6-7.) Plaintiff now moves for an order deeming the Requests for Admission admitted pursuant to Code of Civil Procedure section 2033.280. Defendant Mammoital filed an opposition on June 9, 2026 and Plaintiff replied on June 15, 2026.

Discussion

There is no requirement for a prior meet and confer effort before a motion to deem requests for admission can be filed. (Code Civ. Proc., § 2033.280.) Further, the motion can be brought at any time after the responding party fails to serve responses. (Code Civ. Proc., § 2033.280.) The Court is required to deem the requests admitted unless substantially compliant responses are served prior to the hearing date. (Code Civ. Proc., § 2033.280.) Defendant Mammoital served responses to the Requests for Admissions, Set One, on June 4, 2026. (Opp., Hahn Decl., Exh. A.) Plaintiff acknowledges receipt of the responses and does not argue that they are not in substantial compliance with the Discovery Code. (Reply, p. 1:24-25.) The request to deem the admissions admitted, therefore, is denied.

The Court is required to award sanctions under the moving

statute. (Code Civ. Proc., § 2033.280, subd. (c).) Defendant Mammoital contends that sanctions should be denied because its failure to respond occurred when it lacked representation, such that its non-response was substantially justified. (Citing Code Civ. Proc., § 2023.030.) The Court finds no basis to hold that self-representation by a corporation substantially justifies its failure to respond to discovery.

Defendant Mammoital was made aware that its self-representation was improper in November 2025, but did not obtain new counsel for more than six months. (See Motion to Strike Answer, filed 11/07/25.)

Sanctions are granted against Defendant Mammoital in the amount of \$673.75 based on one hour of attorney time billed at \$600.00 per hour, plus \$73.75 in fees. (Motion, Brown Decl., ¶9.) The Court reduces the time because substantially identical motions were filed as to two other defendants in this case on the same date and much of the work across the motions and reply briefs is duplicative.

Conclusion

Plaintiff Creditor Adjustment Bureau, Inc.'s Motion to Deem Requests for Admission Admitted and Request for Sanctions is denied as to the requests, and granted as to the sanctions in the amount of \$673.75. The sanctions are to be paid by Defendant Mammoital, Inc

#2 dba Mammoital adba Carusos Pizza adba Two Guys From Italy adba Caruso's

Italian Kitchen adba Rok N Sushi to Plaintiff's counsel within 20 days.

Moving party to give notice.